

Court No. - 3

Case :- WRIT - C No. - 16202 of 2022

Petitioner :- Subhash Chandra

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shivajee Srivastava

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"a) Issue a writ, order or direction in the nature of certiorari quashing the impugned Demand Notice dated 11.9.2020 issued by the respondent no.4 as well as the impugned Recovery Citation dated 27.12.2021 issued by the Tehsildar-Soraon, Prayagraj (Annexure No. 5 and 7 to the writ petition).

(b) Issue a writ, order or direction in the nature of mandamus directing the respondent no.4 to decide the representation dated 29.9.2020 of the petitioner as early as possible or within stipulated time period which this Hon'ble court may deem fit and proper."

Sri N.K. Tiwari, learned counsel for the respondent No. 2 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 5.7.2022

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